

Bihar Mines & Geology Inspector Service Rules, 2009

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State of Bihar - Act

Bihar Mines & Geology Inspector Service Rules, 2009

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Bihar Mines & Geology Inspector Service Rules, 2009

Rule BIHAR-MINES-GEOLOGY-INSPECTOR-SERVICE-RULES-2009 of 2009

Published on 17 February 2009

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Bihar Mines & Geology Inspector Service Rules, 2009

Published vide Notification No. 151/ M, Patna, Dated 17.2.2009

Government of Bihar, Department of Mines & Geology, Memo No. 151/ M, Patna, Dated 17.2.2009. - In exercise of the powers conferred under proviso to Article 309 of the Constitution of India, the Governor of Bihar is hereby pleased to make the following Rules to regulate the mode of recruitment and conditions of service of the Bihar Mines & Geology Inspector Service.

Chapter-1 Preliminary

1.

Short title and commencement.

- (i) These Rules may be called the Bihar Mines & Geology Inspector Service Rules, 2009.

(ii)

It shall be applicable to the whole of the State of Bihar.

(iii)

It shall come into force from the date of publication of notification in the Official Gazette.

2.

Definitions.

- In these Rules, unless the context requires otherwise,

(i)

'Service' means Bihar Mines and Geology Inspector Service.

(ii)

'Commission' means the Bihar Staff Selection Commission.

(iii)

'Governor' means the Governor of Bihar.

(iv)

'Member' or 'Member of the Service' means a person appointed to the Bihar Mines & Geology Inspector Service.

(v)

'Schedule' means Schedule appended to this Rule.

3.

Constitution of the Services.

- This service shall be deemed to be State level service. Persons already appointed and working as Mining Inspector prior to coming into force of this Rules, shall be deemed to be included automatically in this service.

4.

Accountability.

- This service shall be under the administrative control of Mines & Geology Department. Head of the Department of this service shall be Director, Mines & Geology.

5.

Status.

- The members of the Bihar Mines & Geology Inspector Service shall be non-Gazetted.

Chapter-2 Recruitment

6.

Sources of recruitment.

- Recruitment to the Service shall be made by direct recruitment only.

7.

Reservation of Vacancies.

- Rules and procedures regarding reservation of vacancies in recruitment prescribed by the State Government, time to time, shall apply.

8.

Determination of Vacancies and to make requisition the same to the Commission.

- The Government with reference to the 1st day of April every year, shall determine the number of vacancies to be filled up that year by direct requirement, and shall send the requisition upto 30th April, to the Commission.

Chapter-3 Direct Recruitment

9.

Direct Recruitment.

- The Commission shall advertise the vacancies to be filled by direct recruitment through competitive examination and shall invite applications from candidates eligible for appointment to the Service.

10.

Eligibility.

- The age limits for eligibility shall be as determined by the Deptt. of Personnel and Administrative Reforms of the State Government, from time to time. The minimum educational qualifications shall be as prescribed in Schedule I to these Rules.

11.

Examination & Viva-Voce Test.

- The Candidates shall have to appear at a written examination in the following subjects:-

(i)

General Studies

-

100 marks

(ii)

Mining & Mines Surveying or Geology

-

100 marks.

(iii)

Mining legislation and policies in India

-

100 marks.

Candidates numbering double of the vacancies and selected on the basis of marks obtained at the written examination shall be invited for appearing at a Viva-Voce test. The Viva-Voce test shall be of 25 marks but no minimum qualifying marks shall be fixed for passing in Viva-Voce test.

12.

Recommendation of candidates by the Commission.

- The Commission shall prepare a merit list on the basis of the marks obtained in the written examination and Viva-Voce Test. From the merit list so prepared, the Commission shall recommend such number of candidates as requisitioned by the Government. In case of non-joining of any candidate the vacancies shall be carry forwarded for next year. In case two or more candidates obtain equal marks, their position in the merit list shall be decided in order of their educational qualification and date of birth respectively i.e. the candidate holding the higher educational qualification and age shall be given priority. The validity of merit list shall be for one year.

13.

Medical Examination.

- Every candidate selected for appointment shall have to undergo a medical examination by Medical Board constituted by the State Government. A candidate who fails to satisfy the Medical Board in regard to his/her physical fitness, necessary for efficient performance of the duties of the post, shall not be appointed. The Medical Board shall determine objective standards for this purpose.

14.

Seniority.

- The inter-se seniority of the members of the service shall be determined in accordance with the merit list prepared by the Commission.

Chapter-4 Promotion

15.

Promotion.

- The members of this Service will be promoted to the basic grade post of Mineral Development Officer in the Bihar Mines & Geology Service, in accordance with the Rules for that Service. The minimum qualification and qualifying period for promotion to the basic grade is given in Schedule-II and kalawadhi shall be the same which may be fixed from time to time by Personnel & Administrative Deptt.

Chapter-5 Probation

16.

Probation.

(1)

Every member shall, on appointment against a substantive vacancy, be on probation for a period of two years from the date of joining the post:

Provided that the period during which a person has held that post in officiating or temporary capacity may, subject to a maximum of two years, be allowed by the Government to be counted towards the period of probation.

(2)

The Government may, during or at the end of the period of probation, terminate the appointment of the member to the

Service in accordance with the provisions contained in the Bihar Government Servant (Classification, Control and Appeal) Rules, 2005, if the member of this Service has failed to fulfill the conditions of his Probation or is found to be otherwise unfit for permanent appointment to the service.

(3)

The Government may, at its discretion, extend the period of probation of a member by a reasonable period, not exceeding one year.

17.

Departmental Examination.

- After the end of probation period, the member of service shall have to pass the departmental examination. The syllabus for departmental examination shall be determined by the Mines & Geology Deptt.

18.

Confirmation.

- A member appointed on probation shall be confirmed at the end of the period of probation provided that he has completed all the liabilities.

Chapter-7 General

19.

Contract regarding area of work.

- (i) A member of this Service shall be liable to be posted in any department of the Government and anywhere in the State of Bihar or outside.

(ii)

The State Government shall have powers to post or depute any member of this service on any ex-cadre post in accordance with his seniority.

20.

Training.

- A member of this Service shall be liable to be sent on training within or outside the State for such period as the State Government, may determine.

21.

Administrative Control of the Director.

- When the Service of a member is under the Directorate, Director Mines & Geology shall exercise such powers over the members as are generally exercised by heads of departments in the State Government.

22.

Other Conditions of Service.

- Other conditions applicable to this Service such as, disciplinary action, leave, retirement benefits shall be governed by the respective Rules framed for employees and Officials of the State Government.

23.

The State Government shall have powers to amend the provisions of these Rules following the procedures prescribed. For implementing the provisions of these Rules, the administrative department may determine the procedures, provided they are not contrary to any provision of these Rules.

24.

Repeal and Saving.

- The resolution/circular etcetra regarding recruitment and service conditions of this service issued prior to the date of enforcement of this Rules shall be deemed to be repealed. But save and except such repeal, Any act done or any action taken under such resolution/circular etc. shall be deemed to have been done under or by these Rules as if such act or any action had been done or taken on the date of enforcement of these Rules.

I

For direct recruitment in service, the following qualification will be :-

(i)

Diploma in Mines and Mines Surveying or M.Sc. (Geology).

(ii)

Composition of service and the number of Mining Inspectors are as follows:-

Sl. No.

Designation

No. of Posts

Remarks

1.

Mining Inspector

38

Note :- The No. of posts may be increased or decreased by the Deptt. by Notification in the Official Gazette from the time to time.

II

Basic grade Posts to which members of Bihar Mines & Geology Inspector Service may be appointed by promotion:-

Following are the qualifications for promotion to the basic grade of Bihar Mines & Geology Service on the basis as follows:-

(i)

Their minimum educational qualification shall be Diploma in Mines & Mines Surveying mining/M.Sc. (Geology) and with 8 years experience.

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